

JUDGMENT SHEET
LAHORE HIGH COURT,
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

C. R. No. 1003-D / 2011

Multan Development Authority

Versus

Muhammad Abdullah Shah (deceased) through L.Rs

JUDGMENT

Date of Hearing:	08.06.2022
Petitioner By:	Barrister Malik Sohail Ashiq Shujra, Advocate
Respondents By:	Mr. Muhammad Maalik Khan Langah, Advocate

ABID HUSSAIN CHATTHA, J: This Civil Revision is directed against the impugned Judgments & Decrees dated 19.04.2010 and 08.04.2011 passed by the Civil Judge, Multan and Additional District Judge, Multan, respectively.

2. Briefly, the Respondents instituted a suit for recovery of Rs. 1,595,909/- with interest against the Petitioner contending therein that they were owners-in-possession of the land measuring 07-Kanals, 02-Marlas and 13-Yards fully described in paragraph No. 1 of the plaint (the “**Property**”) and the Petitioner had no right to construct the road without acquiring the Property and payment of adequate compensation. It was alleged that the Property was utilized by the Petitioner during the construction of the road after demolishing the wall of the house of the Respondents in defiance of status quo order dated 31.07.1988 granted by the Court in a previous suit for declaration and permanent injunction. As such, the Petitioner without carrying out acquisition proceedings and payment of compensation deprived the Respondents from their Property. It was prayed that the Respondents are entitled for compensation regarding the price of the Property as well as for mental torture to the tune of Rs.

1,595,909/- with interest from September, 1988 till the realization of the claimed amount.

3. The Petitioner contested the suit by filing written statement and raised a number of legal objections. On merits, it was submitted that the Respondents were not owner-in-possession of the Property and a thoroughfare for a private colony existed since 1969. The Petitioner had merely constructed the road on the existing road. As such, the Respondents were not entitled to any compensation.

4. Out of divergent pleadings of the parties, the following issues were framed:-

1. *Whether the plaintiffs are entitled to recover Rs. 1,595,909/- from the defendant? OPP*
2. *Whether the plaintiffs have no cause of action? OPD*
3. *Whether the plaintiffs suit has been formerly dismissed, if so, its effect? OPD*
4. *Whether the Civil Courts have no jurisdiction to try the suit in hand? OPD*
5. *Relief?*

5. After recording the respective evidence of the parties, the Trial Court decreed the suit in the following terms:-

“Suit is hereby decreed for compensation of mental torture at Rs. 100,000/-. For the remaining claims Court cannot itself award compensation because it is authority of Commissioner only. Collector and Commissioner are hereby directed to acquire the property in accordance with rules as it should had happened before the construction of the road and taking possession then hear the objections and proceed in accordance with law. The compensation if awarded would be subject to penalties for delay in making award under Para-VIII of Land Acquisition Act. Suit is decreed accordingly with cost. Decree sheet be drawn up. File be consigned to record room after its due completion.”

6. The Petitioner filed an Appeal against the aforesaid Judgment which was dismissed by the Appellate Court vide Judgment & Decree dated 08.04.2011.

7. Learned counsel for the Petitioner submitted that the impugned Judgments passed by the Courts below are result of misreading and non-reading of evidence and are based on misinterpretation and misapplication

of law. He further contended that there was no evidence on record on the basis of which the suit of the Respondents could be decreed. Moreover, the Trial Court was not authorized to issue direction to the Collector to determine compensation regarding the Property as the Petitioner had merely constructed the metalled road on an existing unpaved road.

8. On the other hand, learned counsel for the Respondents defended and supported the impugned Judgments on the ground that it was conclusively established that the Property of the Respondents was illegally possessed and utilized in the construction of road without acquisition and payment of due compensation. In fact, the Trial Court should have itself awarded the compensation as claimed in the suit. The impugned Judgments do not call for any interference as the Respondents are entitled to due compensation.

9. Arguments heard. Record perused.

10. The examination of evidence on record reveals that Manzoor Hussain, Qanungo appeared as PW-1 and stated that the Property of the Respondents was included in the controlled area which was notified by the Petitioner vide notification dated 22.08.1988. He further stated that the Petitioner did not acquire the Property or other land on which the road was constructed. The Petitioner had approved a scheme for the construction of inner bypass. As a component of inner bypass, an unpaved road passing through a private colony was also metalled. Since it was public thoroughfare, therefore, there was no need for acquisition. The witness produced by the Respondents was declared hostile and was allowed to be cross-examined. He admitted that the alleged colony of the Respondents was never approved by the Petitioner and no land had been acquired regarding the same. He admitted the fact of demolishing the portion of the house of the Respondents. He also deposed that initially a letter was written to the Collector regarding acquisition of land for construction of road but later not pursued as acquisition was not required. Muhammad Ashraf, Halqa Patwari entered in the witness box as PW-2 and stated that he had seen the Property. A road was constructed by the Petitioner which passed through the Property of the Respondents. Residence of the Respondents

was built in Khasra No. 1348 and a portion of it was demolished. He confirmed that an area of 07-Kanals, 02-Marlas and 13-Yards belonging to the Respondents was utilized in the construction of road by the Petitioner. During cross-examination, he deposed that the Respondents had launched a private colony and were also selling the plots to their clients as depicted through various mutations. Respondent No. 1, namely, Muhammad Abdullah Shah appeared as PW-3 and stated that he had never got any formal approval of a residential colony from the Petitioner and did not sell any land around the Property. On 09.08.1987, he had filed an application for payment of compensation stating therein that the Property was agricultural in nature but despite repeated demands he has not been paid any compensation. He stated that he had submitted a map for approval of a housing scheme before the Housing Department but the same was not approved. The road was constructed forcibly in the presence of stay order granted in the earlier suit. He categorized the claimed compensation in line with the pleadings in the plaint with reference to prevailing price of the Property and prayed for decree of his suit with interest at the bank rate.

11. The Petitioner produced Ch. Abdul Jabbar, SDO as DW-1 who in his testimony deposed that the Respondents approved a private colony between Nawabpur Road and Gulgasht colony from the Housing Department. The original scheme was produced as Exh. D-2 alongwith letter Exh. D-1. He further deposed that in 1987, the Petitioner planned and approved to construct a road from Octroi No. 9 to MDA Chowk and used the proposed public way for construction of the road. At that time, the Respondents were happy for construction of road as they believed that the value of their entire land will increase significantly. He confirmed that boundary wall of the Respondents was demolished to straighten the road. He further stated that the road was constructed on the proposed public way and as per Register Haqdar-e-Zameen 1984-85, the area through which it passes is shown as *Ghair Mumkin Abadi* which confirms the existence of a colony and a thoroughfare. He also testified that Mark D-1 and Mark D-2 as well as Aks Shajra D-4 depicts that a road passed through the area and the same was

used for the construction of metalled road. As such, there was no need to initiate acquisition proceedings regarding the Property.

12. The evaluation and appreciation of evidence on record leads to the conclusion that no acquisition proceedings were carried out by the Petitioner regarding construction of the road. It was proved by the Respondents that their Property measuring 07-Kanals, 02-Marlas and 13-Yards was utilized in the construction of the road which had not been acquired. The assertion regarding demolishing of the boundary wall of the house of the Respondents was also proved. The Petitioner also could not conclusively establish its right to build a road on land not owned by it or the Government without acquisition or compensation in the notified area. The Respondents had denied that they had launched a residential colony around the Property but in cross-examination, admitted that an application (Exh. P-5) was filed before the Director Estate Management, MDA in which it was mentioned that a road is proposed to pass through their proposed colony of Sultanabad and they had no objection for construction of the road through their Property, if the Respondents were duly compensated. It proved that the Property of the Respondents was not a part of public thoroughfare since 1969. Further, even in the referred letter, the Respondents specifically sought compensation. It demonstrated that the Respondents did not forego their right of compensation even though they may have consented to the passing of the road through their Property. Hence, if it is assumed that the road was built on a passage which had been earmarked by the Respondents as public thoroughfare yet it did not give a right to the Petitioner to build a road thereon without acquisition and due compensation since no title or right regarding the Property was conferred by the Respondents upon the Petitioner. It was also proved that initially the Respondents had filed a suit for declaration and perpetual injunction against construction of road without acquisition but later when the road was forcibly constructed, the instant suit was filed seeking compensation. It is worth noting that while confirming stay order on 31.07.1988 in the previous suit, the Presiding Officer himself visited the spot and verified that the Property of the Respondents was utilized in the construction of the

road without acquisition and no evidence of any existing unpaved street was found (Exh.P-11). Hence, this Court is in agreement with the concurrent findings recorded by the Courts below to the effect that the Property of the Respondents was illegally possessed by the Petitioner without acquisition and due compensation.

13. The Respondents had sought compensation in paragraph No. 4 of the plaint in line with the principles of determination of compensation stipulated in various provisions of the Land Acquisition Act, 1894 (the “Act”) as under:-

i	Compensation for loss to constructed house:	Rs. 200,000/-
ii	Compensation of the Property utilized in road:	Rs. 1,126,909/-
iii	Compulsory acquisition charges @ 15%: (compensation of above from September, 1988 with interest as per bank rate till realization as per decree)	Rs. 169,000/-
iv	Compensation for mental torture of the Respondents:	Rs. 100,000/-
	Total:	Rs. 1,595,909/-

The Respondents consistently deposed in line with the pleadings and stated prevalent market price of the Property. The same was merely rebutted by the Petitioner to the extent that the Respondents were not entitled to any compensation but the figures for compensation in terms of price of the Property and demolished construction were not specifically controverted either in written statement or in evidence. Hence, the Respondents successfully proved their claim in terms of item Nos. (i), (ii) and (iii) above. They are also entitled to compound interest at the rate of 8% per annum in accordance with the principle enshrined in Section 34 of the Act from the date of taking possession of the Property with effect from September, 1988. For reference see case titled, “Nisar Ahmad Sabri through L.Rs. and others v. Government of Punjab through Secretary, Labour Department and others” (2015 YLR 2095).

14. Notwithstanding that the Courts below concurrently held that the Respondents were entitled to due compensation regarding their Property acquired or possessed without following due process of law, the compensation was not determined and given to the Respondents but the matter was referred to the Collector. In this behalf, the Trial Court directed the Collector to initiate the process of acquisition of the Property in accordance with law following the process and procedure stipulated in the

Act. The Appellate Court did not agree with the nature of directions given by the Trial Court but at the same time concurred that compensation can only be awarded by the Collector. This Court is mindful of the fact that the Respondents did not file Appeal or Civil Revision against the Judgment & Decree passed by the Trial Court. Hence, the following questions are posed for determination by this Court:-

- i. Whether the Courts below were justified to refer the proved claim of compensation of the Respondents against illegal acquisition to the Collector by initiating a fresh process of acquisition? and
- ii. Whether relief can be modified in favour of the Respondents who did not file an Appeal or Civil Revision despite the fact that they successfully proved their claim for compensation?

15. Article 24 of the Constitution of the Islamic Republic of Pakistan, 1973 provides protection to proprietary rights by recognizing and declaring the same as a fundamental right. It ordains that no person shall be deprived of his property save in accordance with law and no property shall be compulsorily acquired or taken possession of save for a public purpose, and save by the authority of law which provides for compensation therefor and either fixes the amount of compensation or specifies the principles on and the manner in which compensation is to be determined and given. The Act provides a complete code in terms of acquisition and determination of adequate compensation of property acquired for public purpose. However, there is no provision in the Act to deal with a situation where land is possessed and utilized by the Government or its instrumentalities without triggering the mechanism of acquisition under the Act. In such a scenario, the Respondents were well within their lawful right to institute a suit for recovery of due adequate compensation. Needless to state that even where acquisition proceedings are initiated in accordance with the provisions of the Act, the reference under Section 18 of the Act is adjudicated by the principal civil court of original jurisdiction in terms of objections regarding measurement of the land, the amount of the compensation and the persons

to whom it is payable against the 'Award' rendered by the Collector. Hence, a civil suit for recovery of compensation was a proper remedy for a person whose property is taken away or usurped by the State or any of its instrumentalities for public purpose without initiating the process of acquisition and payment of due compensation under the Act. The fact remains that the Respondents have been deprived from due compensation since the initiation of *lis* in 1989. The decision to refer the matter to Collector for determination of due compensation would therefore, be unjust, unfair and in violation of fundamental right of the Respondents. It would tantamount to give a license to the Government or its instrumentalities to compulsorily acquire properties without following due process of law. It follows that where the acquiring agency usurps the right of a person by forcibly occupying his property, the aggrieved person may bring a suit for recovery of compensation in line with the principles of determination of compensation under the Act since there is no mechanism to trigger the provisions of the Act to seek compensation after forcible possession and consumption of property. In case titled, "Muhammad Afzal v. Executive Engineer and another" (2009 MLD 82), the suit for compensation regarding land admittedly not acquired was decreed. For reference also see case titled, "Syed Qaiser Hussain v. L.M.C." (1994 CLC 1471).

16. The jurisdiction vested in this Court under Section 115 of the Code of Civil Procedure, 1908 (the "CPC") is remedial, corrective, supervisory, discretionary and equitable. The Court is empowered to remedy errors of illegality or irregularity in the lawful exercise of jurisdiction to ensure that complete and substantial justice is done between the parties. In case titled, "Manager, Jammu & Kashmir, State Property in Pakistan v. Khuda Yar and another" (PLD 1975 Supreme Court 678) at page 697, it was importantly observed as follows:-

"The scope of the revisional powers of the High Court though circumscribed by conditions of excess of jurisdiction, failure to exercise jurisdiction, illegal exercise of jurisdiction, is nevertheless very vast and corresponds to a remedy of certiorari and in fact goes beyond that at least in two respects inasmuch as: Firstly, its discretionary jurisdiction may be invoked by the Court suo motu, and Secondly, the Court "may make such order in the case as it thinks fit".

In case titled, “Haji Wajdad v. Provincial Government through Secretary Board of Revenue Government of Balochistan, Quetta and others” (2020 SCMR 2064), the Honourable Supreme Court of Pakistan observed that the Revisional Court under Section 115 of the CPC can exercise jurisdiction either on an application of an aggrieved person or *suo motu* to effectively correct any material error of facts or law committed by any subordinate Court. Once the High Court was presented with the Revision Petition, the entire case (trial and appellate proceedings) was open for consideration to the Court, without being restricted to the question of limitation of filing of appeal before the Appellate Court. Seen in this perspective, the Revision Petition could be deemed as an “information” to the Revisional Court, and in furtherance thereof, this Court can exercise *suo motu* power in its revisional jurisdiction with regard to the Judgment of the Trial Court, which it found to suffer from material irregularities. In case titled, “Mst. Banori v. Jilani through Legal Heirs and others” (PLD 2010 Supreme Court 1186), it was held by the August Supreme Court that the power under Section 115 of the CPC was basically a power exercisable *suo motu*. Therefore, no restriction whatsoever was placed on the sources from which the information regarding any error, illegality or irregularity of the kind mentioned in Section 115 of the CPC could reach the High Court. It was further held that the jurisdiction under Section 115 of the CPC is essentially a supervisory jurisdiction of superintendence and control meant to ensure correction of illegalities and irregularities found in the decisions of the Courts subordinate to the Revisional Court and in the discharge of its obligation, the Revisional Court was not placed at the mercy of the parties to a *lis* or of some other person and was required to act even *suo motu*. In case titled, “Muhammad Feroze and others v. Muhammad Jamaat Ali” (2006 SCMR 1304), it was reiterated by the Honourable Supreme Court of Pakistan that the scope of revisional powers of the High Court is very vast and corresponds to a *certiorari* allowing the Revisional Court to exercise its discretionary jurisdiction *suo motu* and the Court may make such order in the case as it thinks fit. The above referred case law leads to the conclusion that there are no fetters imposed on the powers conferred upon

this Court in revisional jurisdiction to correct errors of illegality found in the Judgments & Decrees passed by the Courts below and the relief can be adequately moulded to provide complete and substantial justice keeping in view the peculiar facts and circumstance of the case. Even otherwise Rule 7 of Order VII of the CPC empowers the Court to modify the relief.

17. In view of the above discussion, the instant Civil Revision instituted by the Petitioner is **dismissed**; the impugned Judgments & Decrees dated 19.04.2010 and 08.04.2011 passed by the Courts below are modified in the manner that the suit of the Respondents is decreed for Rs. 1,495,909/- with compound interest @ 8% per annum from September, 1988 till realization of amount due. The finding of the Courts below to the extent of award of Rs. 100,000/- for mental torture is maintained. No order as to costs. Order, accordingly.

(Abid Hussain Chattha)
Judge

Approved for reporting.

Judge

**Ahsan*